

25CHCV02439 25CHCV02439

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Case Number: 25CHCV02439 Hearing Date: August 6, 2026 Dept: F49

Dept. F49

Date: 8/6/26

Case Name: Maria Guadalupe Luna vs. Six Flags

Entertainment Corporation; Magic Mountain LLC; and Does 1-50

Case No. 25CHCV02439

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 6, 2026

MOTION TO COMPEL FURTHER

RESPONSES TO REQUESTS FOR PRODUCTION; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 25CHCV02439

Motion filed: 3/10/26

MOVING PARTY: Defendant Magic Mountain LLC

RESPONDING PARTY: Plaintiff Maria Guadalupe Luna

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Plaintiff to serve further responses to Defendant Magic Mountain LLC's Requests for Production of Documents, Set One, Nos. 8-10 and 21; and awarding sanctions in the amount of \$3,210.00.

TENTATIVE RULING: The motion is DENIED. The request for sanctions is DENIED.

BACKGROUND

This action arises from injuries allegedly sustained by Plaintiff Maria Guadalupe Luna ("Plaintiff") when she fell from a defective seating wall at Defendants' theme park. On July 10, 2025, Plaintiff filed the Complaint against Defendants Six Flags Entertainment Corporation ("Six Flags"), Magic Mountain LLC ("Magic Mountain") (collectively, "Defendants"), and Does 1 through 50, alleging negligence and premises liability.

On October 31, 2025, Defendants filed their joint Answer to the Complaint.

On March 10, 2026, Magic Mountain filed the instant motion to compel Plaintiff's further responses to Magic Mountain's Request for Production of Documents, Set One (the "Motion").

At the April 8, 2026 Case Management Conference, the parties were ordered to meet and confer regarding outstanding discovery. Pursuant to that order, on June 29, 2026, the parties filed a Joint Status Conference Report.

On July 22, 2026, Plaintiff filed an Opposition.

On July 30, 2026, Magic Mountain filed a Reply.

ANALYSIS

“On

receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310, subd. (a).)

A.

Procedural Requirements

(1)

Timeliness of Motion

A party must bring a motion to compel further responses to a demand for production within 45 days after the responding party serves verified responses or supplemental verified responses. (Code Civ. Proc., § 2030.310, subd. (c).) Parties may also agree in writing to a specific later date by which to file a motion to compel further responses. (Ibid.)

The proof of service attached to Plaintiff’s responses to Magic Mountain’s Request for Production of Documents, Set One indicates that the responses were served via email on January 20, 2026. (Byrne Decl., Exh. B.) The deadline to move to compel further responses was accordingly March 10, 2026. (Code Civ. Proc., §§ 1010.6, 2030.300.) The Motion, filed on March 10, 2026, was therefore timely.

(2)

Meet and Confer

A motion to compel further responses to a demand for production must be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2031.310, subd. (b)(2).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040.)

“The level of effort at informal resolution which satisfies the ‘reasonable and good faith attempt’ standard depends upon the circumstances.” (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.) Relevant factors a court may consider in determining whether a reasonable and good faith attempt was made include “[t]he history of the litigation, the nature of the interaction with counsel, the nature of the issues, the prospects for success and other similar factors.” (Ibid.)

Defendants’ counsel attests that he requested an extension of time to meet and confer regarding Plaintiff’s responses to Magic Mountain’s Request for Production of Documents, Set One on March 4, 2026. (Byrne Decl., ¶ 12.) Plaintiff’s counsel indicated that she would need to see the substance of the issues raised before agreeing to any mutual extensions. (Id., Exh. C.) Defendants’ counsel then sent a meet and confer letter to Plaintiff’s counsel on March 9, 2026 requesting further responses by the end of the day. (Id., ¶ 5, Exh. D.) He also followed up the same day via email and telephone to offer extensions of time to meet and confer but received no response. (Id., ¶ 6.)

As a general matter, the foregoing efforts do not satisfy the in-person or telephonic meet-and-confer requirement of the Discovery Act. Moreover, Defendants’ counsel did not initiate substantive meet and confer efforts until the day before the motion deadline, precluding any meaningful opportunity for both parties to engage in the process before Magic Mountain filed the Motion. Nevertheless, given that Plaintiff’s counsel would not initially agree to any extensions, it was not unreasonable for Magic Mountain to file the Motion on the date of the deadline to preserve the right to further responses. The Court accordingly does not find the deficiency in meet-and-confer efforts to warrant outright denial of the Motion.

(3)

Separate Statement

“Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion ... (3) To compel further responses to a demand for inspection of documents or tangible things.” (Cal. Rules of Court, Rule 3.1345, subd. (a).) The separate statement must “provide[] all information necessary to understand ... all the responses ... that are at issue” and “be full and complete so that no

person is required to review any other document in order to determine the full request and the full response.” (Id., Rule 3.1345, subd. (c).)

Magic Mountain has filed a separate statement concurrently with the Motion, identifying each response at issue, stating the text of both the request and response, and providing reasons for compelling further response. The Court thus finds that Magic Mountain has complied with the separate statement requirement.

B.

Motion to Compel Further Responses

The party to whom a demand for production has been made must respond separately to each demand by any of the following: (1) a statement that the party will comply with the demand by the date set; (2) “[a] representation that the party lacks the ability to comply with the particular demand;” or (3) an objection to the demand. (Code Civ. Proc., § 2031.210, subd. (a).)

A statement of compliance with a particular demand must state whether compliance will be made in whole or in part, and “that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Code Civ. Proc., § 2031.220.)

“A representation of inability to comply with [a] particular demand ... shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party.” (Code Civ. Proc., § 2031.230.) The statement must also set forth the name and address of any person or organization known or believed to have possession, custody, or control of that item or category of item. (Ibid.)

If the responding party objects to the demand, the response must: (1) identify any document or item falling within the category of the demand to which an objection is being made; and (2) clearly set forth the ground for the objection. (Code Civ. Proc., § 2031.240, subd. (b).)

“If an objection is based on a claim of privilege, the particular privilege invoked shall be stated.” (Id., § 2031.240, subd. (b)(2).)

(1)

The Motion to Compel Further Responses Is Moot.

Both parties concede that the supplemental responses served by Plaintiff on April 10, 2026 are code-compliant and resolve the deficiencies identified in the Motion. (Reply, at p. 2; Joint Status Conference Report, at p. 4.) The Motion to compel further responses is accordingly DENIED AS MOOT.

The only remaining issue is sanctions.

C.

Monetary Sanctions

“The court may impose a monetary sanction and order that one engaging in the misuse of the discovery process ... pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030, subd. (a).) Misuse of the discovery process includes making an evasive response to discovery. (Id., § 2023.010, subd. (f).)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.310, subd. (h).)

Both Magic Mountain and Plaintiff request monetary sanctions.

Magic Mountain contends that the Motion was necessitated by Plaintiff’s deficient responses and failure to grant an extension of time to meet and confer regarding the responses. (Reply, at p. 2.) Plaintiff argues that Magic Mountain’s failure to reasonably meet and confer and to provide a reasonable opportunity to cure any deficiencies shows that the

Motion was brought in bad faith to harass Plaintiff. (Opp'n, at pp. 5-6.)

As discussed above, the Court finds that it was reasonable for Magic Mountain to bring the Motion before expiration of the deadline. However, it was also reasonable for Plaintiff's counsel to request the basis for any claimed deficiencies in the responses to evaluate the merits before agreeing to extend the meet-and-confer timeline. Identification of the issues only the day before the deadline did not provide ample time for response. The Court accordingly finds that neither party acted without substantial justification.

The requests for sanctions are therefore
DENIED.

CONCLUSION

Defendant Magic Mountain LLC's motion to compel Plaintiff's further responses to its Request for Production of Documents, Set One is DENIED AS MOOT.

Defendant Magic Mountain LLC's request for monetary sanctions is DENIED.

Plaintiff's request for monetary sanctions is DENIED.

Moving party to give notice.